CROSS-BORDER HEIRSHIP, DUAL-TRACK LEGALIZATION & FOREIGN EXCHANGE RECOVERY GUIDE

Comprehensive Operational and Legal Master Guide for Cross-Border Insurance Recovery

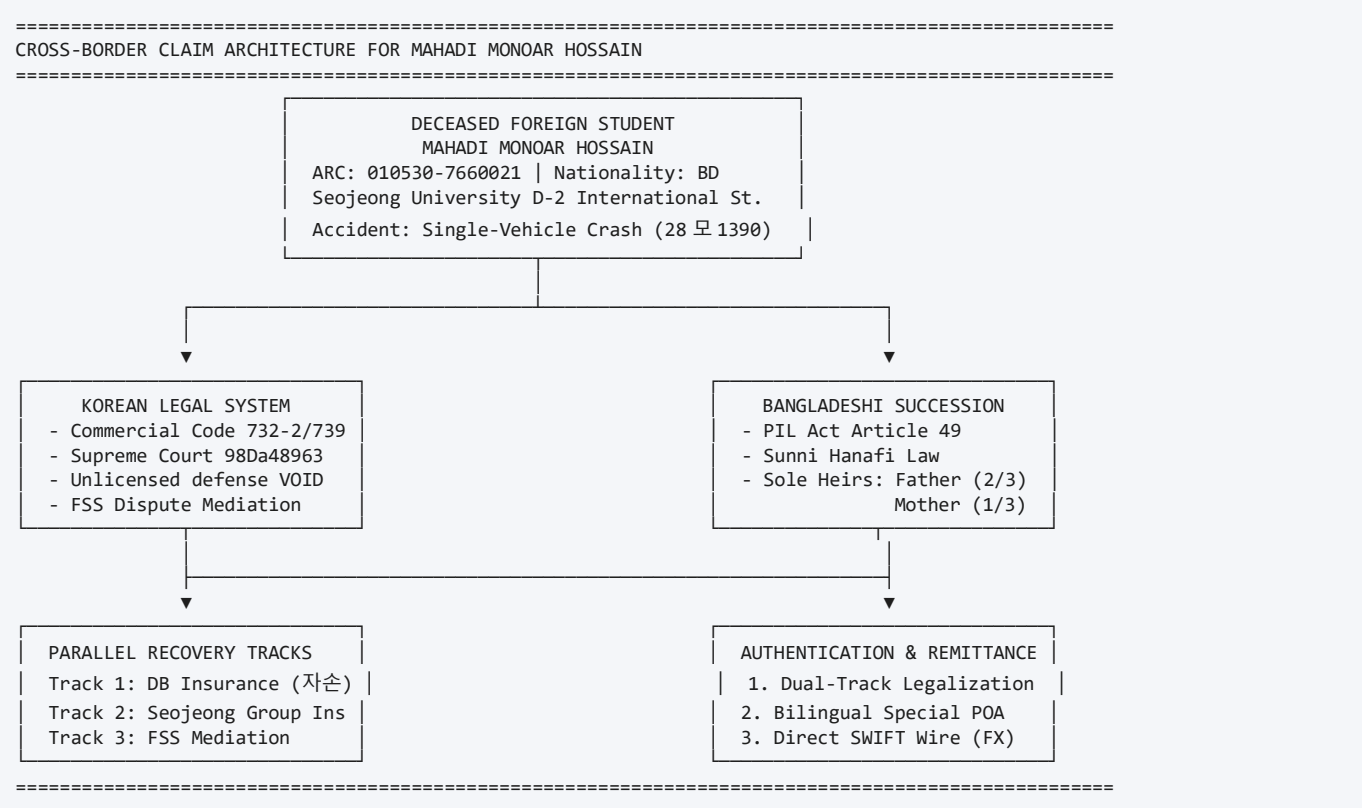
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Document Control

- **Target Case**: Accidental Death of Foreign Student MAHADI MONOAR HOSSAIN (ARC: `010530-7660021`)
- **Target Policy / Vehicle**: DB Insurance Co., Ltd. (`28 모 1390`) & Seojeong University D-2 Group Accident Policy
- **Primary Beneficiaries / Sole Heirs**: BELAL HOSSAIN (Father - 2/3) & MONOARA BEGUM (Mother - 1/3)
- **Governing Conflict of Laws**: Korean Private International Law Act Article 49 (국제사법 제 49 조)
- **Substantive Inheritance Law**: The Muslim Personal Law (Shariat) Application Act, 1937 (Sunni Hanafi Jurisprudence)
- **Date & Status**: August 2026 / Litigation-Grade Operational Standard

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1. EXECUTIVE SUMMARY & CROSS-BORDER RECOVERY ARCHITECTURE



1.1 Core Factual & Jurisdictional Background

1. **The Deceased**: MAHADI MONOAR HOSSAIN, born May 30, 2001, a citizen of the People Republic of Bangladesh, holding Alien Registration Card No. `010530-7660021` and Passport No. `A03097931`, was enrolled as a 1st-year international degree student under a D-2 visa at Seojeong University (서정대학교), Yangju-si, Gyeonggi-do, Republic of Korea.
2. **The Accident**: On March 14, 2026, at approximately 05:58 AM, the deceased suffered a fatal single-vehicle collision at Bukbun-ri 4-1, Hyeonnam-myeon, Yangyang-gun, Gangwon State, while operating passenger vehicle `28 모 1390`. The deceased sustained severe traumatic brain injury and skull fractures, resulting in immediate death (Gangwon Sokcho Police Station Case No. `2026-00020`; GangNeung Asan Hospital attending physician Dr. Huidong Kang).
3. **The Target Insurance Coverage**:

- **DB Insurance Automobile Policy (`28 모 1390`)**: Active policy renewed on January 21, 2026 (Policy No. `2-2026-0531750-000`, Handling: DB Insurance Direct / Customer Claims Center 1588-0100), carrying First-Party Accidental Death Coverage (자기신체사고 / 자동차상해).

- **Seojeong University Foreign Student Master Group Accident Insurance**: Mandatory group policy covering D-2 enrolled students for Accidental Death Benefits (상해사망보험금) and Repatriation / Funeral Expenses (송환비용 및 장례비용).

4. **The Cross-Border Challenge**: The deceased died unmarried and intestate in South Korea, leaving his surviving parents (BELAL HOSSAIN and MONOARA BEGUM) in Bangladesh. Recovering the full insurance benefits requires a seamless, multi-jurisdictional evidentiary pipeline linking Bangladeshi heirship verification, diplomatic legalization, Korean statutory insurance mandates, and Korean foreign exchange remittance compliance.

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2. PRIVATE INTERNATIONAL LAW ART. 49 & BANGLADESHI SUNNI HANAFI SUCCESSION ARCHITECTURE

2.1 Choice of Law under Korean Private International Law Act Article 49

Under the conflict of laws rules of the Republic of Korea, the devolution of estate assets and the legal status of statutory heirs are determined exclusively by **Article 49 of the Private International Law Act (국제사법 제 49 조)**:

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[국제사법 제 49 조 (상속)]
① 상속은 사망 당시 피상속인의 본국법에 의한다.
② 피상속인은 유언에 정하는 방식에 따라 다음 각 호의 어느 하나에 해당하는 법을 지정하여 상속을 준거법으로 할 수 있다. 다만,
유류분에 관한 권리는 피상속인의 사망 당시 본국법에 의한다.
   1. 지정 당시 피상속인의 상거소가 있는 국가의 법
   2. 부동산에 관한 상속의 경우 그 부동산이 소재하는 국가의 법
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Legal Mechanics:

5. **Intestate Lex Patriae (본국법주의)**: The deceased Mahadi Monoar Hossain executed no testamentary document designating Korean law or habitual residence law under Article 49(2). Therefore, pursuant to Article 49(1), **the national law of Bangladesh (피상속인의 본국법인 방글라데시 법률)** exclusively governs all questions of succession.
6. **Universal Scope of the Governing Law**: The lex successionis determines:
   - The capacity to inherit and priority order of legal heirs (상속인의 범위 및 상속순위);
   - The fractional mathematical apportionment of inheritance shares (상속지분율);
   - The devolution of claims, causes of action, and accidental death benefit rights.

2.2 Substantive Bangladeshi Muslim Succession Law (Sunni Hanafi School)

In Bangladesh, succession for Muslim citizens is governed by personal religious law pursuant to **The Muslim Personal Law (Shariat) Application Act, 1937** and **The Succession Act, 1925**. The majority of Bangladeshi Muslims belong to the **Sunni Hanafi School of Jurisprudence** (*Sirajiyyah* principles of inheritance).

Hanafi Classification of Heirs:

7. **Sharers (*Zawil Furud* / 12 Quranic Heirs)**: Entitled to fixed statutory fractions designated in the Holy Quran.
8. **Residuaries (*Asaba* / Agnatic Heirs)**: Entitled to take the entire residue of the estate after Sharers receive their prescribed shares.
9. **Distant Kindred (*Zawil Arham*)**: Blood relations who inherit only if there are no living Sharers or Residuaries.

Family Tree Analysis for MAHADI MONOAR HOSSAIN:

- **Deceased**: MAHADI MONOAR HOSSAIN (Male, Unmarried, Intestate).
- **Spouse**: None (Never married).
- **Descendants (*Awlad*)**: None (No children or grandchildren).
- **Ascendants**:
  - Father: **BELAL HOSSAIN** (Alive).
  - Mother: **MONOARA BEGUM** (Alive).
  - Grandparents: Excluded by living parents.
- **Collaterals**: Siblings (if any) are completely excluded (*Mahjub*) by the presence of the living Father.

2.3 Mathematical Derivation of Inheritance Shares: Father (2/3) & Mother (1/3)

HEIR IDENTITY	RELATIONSHIP	HANAFI CATEGORY	STATUTORY & QURANIC BASIS	FINAL SHARE
MONOARA BEGUM	Mother (모)	Sharer (Zawil Furud)	Holy Quran Surah An-Nisa 4:11 (No children, no multiple sibs)	1/3 (33.333%)
BELAL HOSSAIN	Father (부)	Agnatic Residuary	Sirajiyyah Rule of Asaba	2/3 (66.667%)

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                                    (Asaba)            (Takes entire estate residue)
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TOTAL COMBINED HEIRS                SOLE LEGAL HEIRS    FULL ESTATE & CLAIM RIGHTS    100.000%
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Step-by-Step Doctrinal Computation:

10. **Mother Prescribed Share (1/3)**:

- Quran Surah An-Nisa (4:11) dictates: *If he have no child, and his parents be his heirs, then to his mother appertaineth the third.*

- Because the deceased left no children and no multiple brothers or sisters, the mother share does not reduce to 1/6 (*Hujub Nuqsan*); it remains fixed at **1/3 (33.333%)**.

11. **Father Residuary Share (2/3)**:

- Under Hanafi jurisprudence, where the deceased leaves no children/descendants, the father inherits as the primary **Agnatic Residuary (*Asaba*)**.

- After satisfying the mother 1/3 share, the entire remaining residue of the estate (- 1/3 = 2/3$) vests exclusively in the Father.

12. **Complete Exclusion of Collateral Relatives (*Al-Hajib*)**:

- Under the rule of total exclusion, the existence of the Father totally excludes all brothers, sisters, uncles, aunts, and collateral relatives from any share in the estate.

- **Conclusion**: BELAL HOSSAIN (66.667%) and MONOARA BEGUM (33.333%) are the **100% sole and exclusive legal heirs**.

2.4 Legal Nature of Accidental Death Benefits: Inherent Property of Heirs (고유재산)

Under established Korean Supreme Court jurisprudence (**Supreme Court Decision 2003Da29463 rendered July 9, 2004**; **Supreme Court Decision 2000Da31502 rendered December 28, 2001**):

13. Where an automobile first-party accidental death insurance policy (자손/자상) or group accident policy designates [statutory heirs] (법정상속인) as beneficiaries (or specifies no beneficiary):

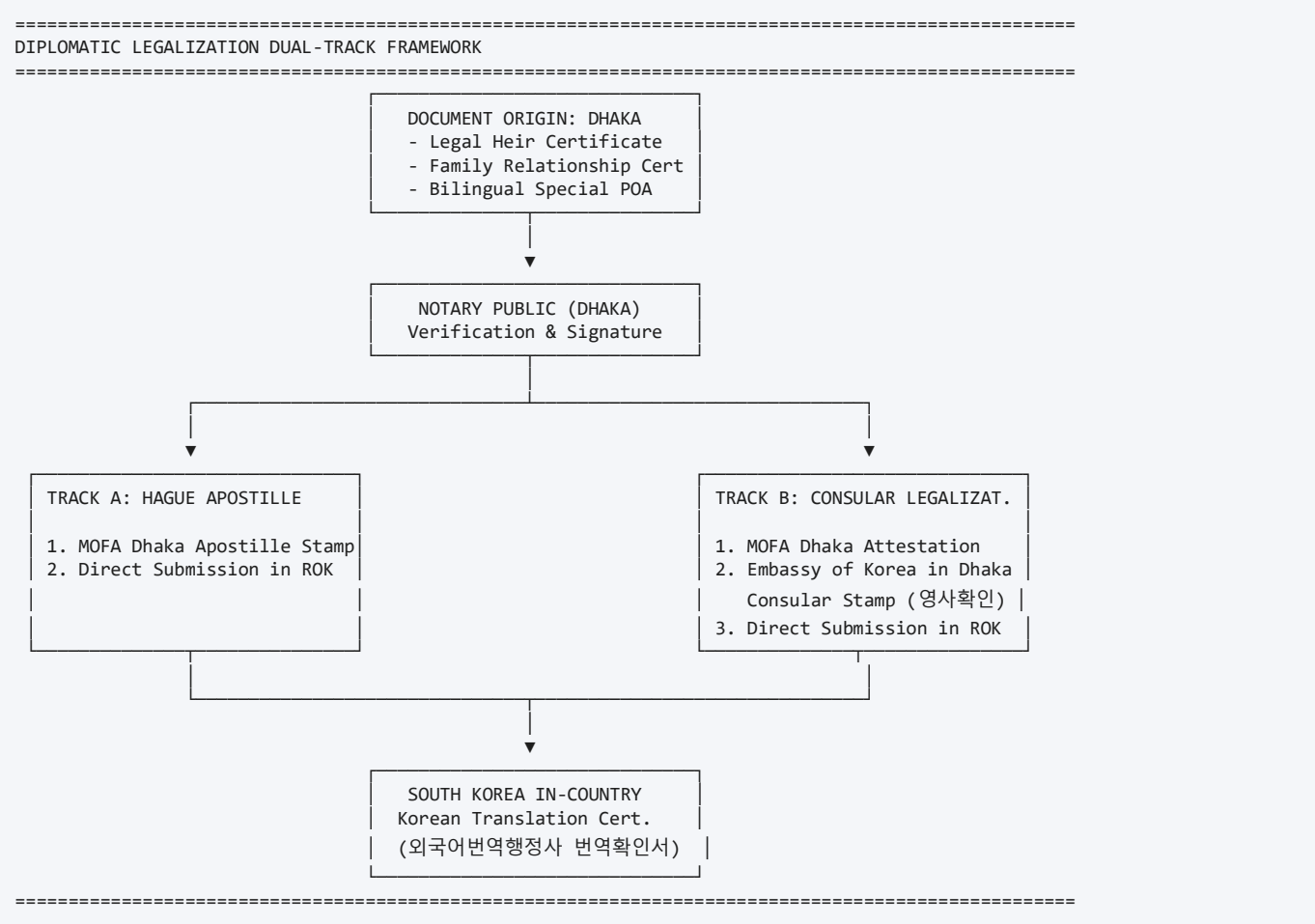
- The death benefit proceeds do **NOT** form part of the deceased insolvent estate.

- The claim right is acquired directly and originally by the statutory heirs as their **inherent, original property (상속인의 고유재산)**.

14. The proceeds cannot be seized by general creditors of the deceased foreign student, and are payable directly to Belal Hossain (2/3) and Monoara Begum (1/3) in accordance with Bangladeshi succession law.

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3. DUAL-TRACK DIPLOMATIC LEGALIZATION STRATEGY (APOSTILLE VS CONSULAR LEGALIZATION)



3.1 International Legal Context & Institutional Realities in South Korea

15. **International Treaty Status**:

- The Republic of Korea acceded to the Hague Apostille Convention on October 25, 2006 (effective July 14, 2007).

- The People Republic of Bangladesh acceded to the Hague Apostille Convention in July 2023.

16. **Institutional Practicalities in South Korea**:

- Although a Hague Apostille issued by the Ministry of Foreign Affairs (MOFA), Dhaka, has full formal validity under international law, Korean commercial claims adjusters at DB Insurance, compliance officers at foreign exchange banks, and the Financial Supervisory Service (FSS) often apply conservative internal scrutiny to documents from newly acceding jurisdictions.

17. **The Dual-Track Solution**:

- **Track A (Apostille Route)**: Fastest route for administrative filings and university disclosures.

- **Track B (Consular Legalization Route)**: The gold standard for financial payouts and litigation. Certified by MOFA Dhaka and legalized by the **Embassy of the Republic of Korea in Dhaka, Bangladesh (주방글라데시 대한민국 대사관)** pursuant to Article 30 of the Overseas Missions Notarial Act. Under Korean Civil Procedure Code Article 356 (공문서의 진정성립 추정), Track B documents carry an irrebuttable presumption of official authenticity.

3.2 Detailed Step-by-Step Execution Protocols in Dhaka

Track A: Hague Apostille Step-by-Step Protocol

18. **Step 1 - Drafting & Verification**: Draft the instrument (e.g., Bilingual Special POA) and assemble government certificates (Legal Heir Certificate, Family Relationship Certificate).
19. **Step 2 - Notarization**: Execute the documents before a licensed Notary Public in Dhaka/Cumilla. The Notary verifies identity via National ID Cards (NID) and affixes the official notarial seal and certificate.
20. **Step 3 - MOFA Apostille Issuance**: Submit the notarized dossier to the Ministry of Foreign Affairs (MOFA), Consular & Official Documents Section, Segunbagicha, Dhaka. MOFA affixes the standardized Hague Apostille Certificate with a unique verification QR code / serial number.
21. **Step 4 - Dispatch to Korea**: Courier original Apostilled instruments to the appointed representative in Korea via DHL/FedEx.

Track B: Consular Legalization (전통적 영사확인) Step-by-Step Protocol

22. **Step 1 - Notarization**: Execution and verification before a licensed Notary Public in Bangladesh.
23. **Step 2 - MOFA Bangladesh Consular Attestation**: Submission to MOFA Dhaka for official departmental authentication and signature verification of the Notary Public.
24. **Step 3 - Korean Embassy Consular Legalization**:
    - Submit the MOFA-attested document to the Consular Section of the **Embassy of the Republic of Korea in Bangladesh** (Address: Madani Avenue, Baridhara, Dhaka-1212; Tel: +880-2-5881-2088).
    - The Korean Consul examines the document and affixes the official Consular Legalization Stamp (영사확인 직인) pursuant to Article 30 of the Republic of Korea Notarial Act for Overseas Missions.
25. **Step 4 - Dispatch to Korea**: Courier the consularly legalized originals to Korea.

3.3 South Korea In-Country Translation & Certification Protocol

26. **Statutory Requirement**: Pursuant to the Korean Administrative Scrivener Act (행정사법 제 2 조, 제 20 조) and Korean Court Practice Guidelines, all documents written in English or Bengali must be accompanied by an official Korean translation.
27. **Certificate of Translation (외국어번역행정사 번역확인서)**:
    - The Korean translation must be reviewed and certified by an authorized **Korean Certified Foreign Language Translation Administrative Scrivener (외국어번역행정사)** or licensed Korean attorney.

- The Administrative Scrivener affixes the official Certificate of Translation (번역확인서), certifying that the Korean translation is complete and conforms exactly to the original authenticated foreign document.

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4. DOCUMENT-BY-DOCUMENT EXECUTION & ATTESTATION MATRIX

#	DOCUMENT NAME	ISSUING AUTHORITY	PRIMARY PURPOSE	AUTHENTICATION ROUTE
1	Legal Heir Certificate (Warishan Certificate / Succession Certificate)	Union Parishad Chairman / City Corporation Ward Councilor / District Court	Proves BELAL HOSSAIN & MONOARA BEGUM are 100% sole legal heirs (2/3 & 1/3 shares)	Notary Public -> MOFA Dhaka -> Embassy of Korea in Dhaka (or Hague Apostille) + Trans
2	Family Relationship Certificate (FRC)	Bangladesh National Birth & Death Registrar / NID Auth	Establishes parent-child lineage between parents & deceased foreign student	Notary Public -> MOFA Dhaka -> Embassy of Korea in Dhaka (or Hague Apostille) + Trans
3	Bilingual Special Power of Attorney (특별위임장)	Executed by BELAL HOSSAIN & MONOARA BEGUM	Grants 7 operative mandates including Direct SWIFT Wire Remittance to Bangladesh	Notary Public -> MOFA Dhaka -> Embassy of Korea in Dhaka (or Hague Apostille) + Trans
4	National ID Cards & Passports of Parents	Bangladesh Election Comm. & Passport Department	Verifies legal identities, birthdates, and signatures	Notarized True Copy -> MOFA -> Embassy of Korea in Dhaka
5	Bangladeshi Bank Account Confirmation Letters	Authorized Foreign Exchange Bank in Dhaka/Cumilla	Verifies SWIFT wire routing for direct fund disbursement	Official Bank Manager Seal -> Notary Public -> Trans
6	Medical Death Certificate & Post-Mortem Exam Certificate	GangNeung Asan Hospital / Treating Medical Facility	Proves accidental death event, time, date, and clinical cause	Original Korean Medical Seal (No foreign legalization needed)
7	Traffic Accident Fact Confirmation (사고사실확인원)	Gangwon Sokcho Police Station (Case: 2026-00020)	Proves single-vehicle collision and driver/vehicle facts	Original Police Seal (No foreign legalization needed)
8	University Enrollment & Academic Registry Records	Seojeong University (서정대학교 국제교류처)	Proves active D-2 foreign student status at death	Original University Seal (No foreign legalization needed)

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5. KOREAN FOREIGN EXCHANGE TRANSACTIONS ACT (외국환거래법) & REMITTANCE PROCEDURES

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CROSS-BORDER FOREIGN EXCHANGE REMITTANCE PIPELINE
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1. SETTLEMENT OF CLAIM / MEDIATION AWARD
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   - DB Insurance / Seojeong Group Insurer issues Payment Approval Notice (보험금 지급결정서).
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                                    ▼
2. DESIGNATION OF FOREIGN EXCHANGE BANK (외국환은행 지정)
   - Attorney-in-Fact or Insurer submits application to major Korean FX Bank (Hana / Shinhan / Woori).
   - Category: Non-Resident Insurance / Inheritance Outward Remittance (비거주자 대외지급).
                                    │
                                    ▼
3. SUBMISSION OF COMPLIANCE DOSSIER TO FX BANK
   - Legalized Bilingual Special Power of Attorney (Track A/B) + Translation Certificate.
   - Legal Heir Certificate (Warishan) & Family Relationship Certificate.
   - Traffic Accident Fact Confirmation & Death Certificate.
   - Korean Tax Clearance / Non-Taxation Verification (상속세 및 증여세법 검토).
   - Verified SWIFT Wire Details for Belal Hossain (2/3) and Monoara Begum (1/3).
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                                    ▼
4. INTERNATIONAL SWIFT MT103 TELEGRAPHIC WIRE TRANSFER
   - Bank converts KRW funds to USD/BDT at current Telegraphic Transfer Selling Rate (TTS).
   - 66.667% wired to Belal Hossain account; 33.333% wired to Monoara Begum account.
   - SWIFT MT103 confirmation message generated and transmitted to representative.
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5.1 Regulatory Classification under Foreign Exchange Regulations

Under the **Korean Foreign Exchange Transactions Act (외국환거래법)** and the **Foreign Exchange Transactions Regulations (외국환거래규정 제 4 장 지급 및 수령)**:

28. **Nature of Payment**: Outward remittance of inheritance assets and insurance benefit claims to non-resident foreign nationals (*비거주자의 국내 재산 및 보험금 대외지급*).
29. **Exemption from Ministry / BOK Approval**: When supported by an authenticated Legal Heir Certificate, Death Certificate, Insurance Settlement Agreement/Judicial Mediation Protocol, and Legalized Special Power of Attorney, cross-border remittance of insurance proceeds requires only **Foreign Exchange Bank Designation & Verification (외국환은행의 확인)** and does **NOT** require prior approval from the Bank of Korea or Ministry of Economy and Finance.

5.2 Korean Tax Compliance: Inheritance & Gift Tax Act (상속세 및 증여세법)

30. **Legal Characterization**: Under Korean Supreme Court precedents (2003Da29463), first-party accidental death benefits (자손/자상) payable to statutory heirs are the **inherent property of the heirs (상속인의 고유재산)**.
31. **Non-Resident Tax Thresholds**: Under the Inheritance and Gift Tax Act, basic estate deductions (기초공제 KRW 200,000,000) apply. Because the aggregate insurance proceeds recovered from DB Insurance and Seojeong University (KRW 110,000,000 ~ 150,000,000) fall well below the KRW 200M statutory threshold, **no Korean inheritance tax liability is incurred**.
32. **Tax Clearance Certificate**: The foreign exchange bank issues an immediate non-taxable outward remittance approval (*비과세 대외지급 확인서*).

5.3 Technical SWIFT MT103 Remittance Specifications

SWIFT MT103 FIELD SPECIFICATION	FATHER (BELAL HOSSAIN - 2/3)	MOTHER (MONOARA BEGUM - 1/3)
Field 20: Transaction Ref Number	[Unique Bank Remittance Ref]	[Unique Bank Remittance Ref]
Field 23B: Bank Operation Code	CRED	CRED
Field 32A: Value Date / Currency / Amt	USD [66.667% Net Conversion]	USD [33.333% Net Conversion]
Field 50K: Ordering Customer	[DB Insurance / Escrow Account]	[DB Insurance / Escrow Account]
Field 59: Beneficiary Customer	/Account No. [Father BD Acct] BELAL HOSSAIN Munshi Bari, Keshobpur, Monoharganj - 3571, Cumilla, BD	/Account No. [Mother BD Acct] MONOARA BEGUM Munshi Bari, Keshobpur, Monoharganj - 3571, Cumilla, BD
Field 57A: Beneficiary Institution	MTBLBDDH (Mutual Trust Bank PLC)	MTBLBDDH (Mutual Trust Bank PLC)
Field 70: Remittance Information	"Inheritance Insurance Recovery Deceased: Mahadi Monoar Hossain"	"Inheritance Insurance Recovery Deceased: Mahadi Monoar Hossain"
Field 71A: Details of Charges	OUR (All transfer fees paid)	OUR (All transfer fees paid)

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6. SEOJEONG UNIVERSITY (서정대학교) D-2 GROUP ACCIDENT CLAIM ARCHITECTURE

6.1 Regulatory Mandate of Ministry of Education Foreign Student Group Insurance

Pursuant to the Ministry of Education Regulations on the Attraction and Management of International Students (외국인 유학생 유치·관리 역량 인증제 평가기준) and Ministry of Justice guidelines:

33. Every higher educational institution in the Republic of Korea hosting foreign students on D-2 (degree) visas is legally mandated to maintain comprehensive group accident insurance coverage for 100% of enrolled international students.
34. Seojeong University (서정대학교), located in Yangju-si, Gyeonggi-do, maintains an annual Master Group Accident Insurance Contract for its international student body through its **Office of International Affairs (국제교류처)**.

6.2 Group Coverage Heads & Independent Recovery Principles

COVERAGE HEAD	BENEFIT DESCRIPTION	STATUTORY LIMIT
1. Accidental Death Benefit (상해사망보험금)	Lump-sum death benefit for death resulting from sudden, external traffic accident	KRW 10,000,000 to KRW 50,000,000
2. Repatriation / Funeral Special Expenses (유골/사체송환비 및 특별비용)	Actual cost reimbursement for embalming, casketing, air transport to Dhaka (AWB), mortuary storage, and family travel	KRW 5,000,000 to KRW 20,000,000
3. Emergency Medical Expense (상해의료비)	Reimbursement for emergency hospital/ICU treatment incurred prior to death	KRW 10,000,000 to KRW 30,000,000

Key Legal Principles:

35. **Non-Offsetting Concurrent Recovery (중복보상 원칙)**:
    - Accidental death benefits under personal accident and group policies are **fixed-sum benefits (정액보험금)**.

- Payout from the Seojeong University group policy does **NOT** reduce or offset the accidental death payout from DB Insurance Co., Ltd. Both claims are fully and independently payable.

36. **Unlicensed Driving Defense Barred**:

- The university group policy is a **personal accident insurance contract (인보험/상해보험)** governed by Commercial Code Art. 732-2 and Art. 739.

- Pursuant to Supreme Court Decision 98Da48963, the group insurer cannot invoke an unlicensed driving exemption clause to deny accidental death coverage.

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7. FIDUCIARY SAFEGUARDS, ANTI-FRAUD PROTOCOLS & FUND PROTECTION

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ANTI-FRAUD & FIDUCIARY PROTECTION PROTOCOLS
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1. PROHIBITION OF INTERMEDIARY COMMINGLING (자금혼용 절대금지)
   - Proceeds must never enter unregulated broker, agent, or personal bank accounts.
   - Payout directly from insurer to Bangladeshi bank via SWIFT, or via Segregated Attorney Escrow.
                                    │
                                    ▼
2. STRICT ANTI-DISCOUNT FIDUCIARY SAFEGUARD (부당감액 금지)
   - Attorney-in-Fact prohibited from accepting settlements discounting >10% of statutory value
     without prior notarized consent from both parents.
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                                    ▼
3. BIOMETRIC THUMBPRINT & NID DUAL-VERIFICATION (이중 신원확인)
   - All instruments in Bangladesh executed with original signatures, right thumbprints, and NID copies.
   - Attested by Notary Public and verified by Korean Consular Officer in Dhaka.
                                    │
                                    ▼
4. FULL SETTLEMENT TRANSPARENCY & AUDITING (투명한 정산보고)
   - Written accounting statement detailing exchange rates (TTS), bank charges, and exact net wire sums
     provided to parents alongside SWIFT MT103 telegraphic confirmation receipt.
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7.1 Detailed Fiduciary Safeguard Principles

37. **Direct Remittance Mandate (Clause 6 Enforcement)**:

- Clause 6 of the Special Power of Attorney establishes an immutable legal instruction to DB Insurance and the Seojeong University group insurer to remit funds directly to the respective individual bank accounts of Belal Hossain and Monoara Begum in Bangladesh.

38. **Segregated Attorney Escrow Trust Accounts (변호사 전용 신탁예치계좌)**:

- If Korean banking procedures necessitate routing through a domestic account, Korean Bar Association regulations mandate that funds be held exclusively in a segregated **Client Trust Escrow Account**.

- The funds must be transferred outward via SWIFT to Bangladesh within **three (3) business days** of clearance.

39. **Protection Against Predatory Foreign Claims Brokers**:

- The inclusion of strict fiduciary protective terms prevents unauthorized intermediaries from asserting exorbitant broker fees, illicit commissions, or coercive settlement waivers.

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8. MASTER OPERATIONAL ROADMAP & EXECUTION TIMELINE

STAGE	TIMELINE	PRIMARY ENTITY	ACTION REQUIRED & DELIVERABLES
STAGE 1	Day 0 (Immediate)	DB Insurance Co., Ltd. (DB 손해보험주식회사)	- Serve Formal Claim Brief & Preemptive Notice. - Demand full Accidental Death Benefit (`28 모 1390`). - Quote Commercial Code Arts. 732-2, 739, 663.
STAGE 2	Day 1 to Day 3	DB Insurance Co., Ltd. (DB 손해보험주식회사)	- Demand mandatory 50%+ Provisional Benefit (가지급보험금) pursuant to Standard Terms Art. 34.
STAGE 3	Day 1 to Day 5	Seojeong University (서정대학교 국제교류처) & Group Insurer	- Serve formal claim notice to Office of Int'l Affairs. - Request Master Group Policy number & claim forms. - Claim Accidental Death + Repatriation Expenses.
STAGE 4	Day 1 to Day 10	Dhaka Authentication Track (MOFA & Korean Embassy)	- Notarize Legal Heir Cert, FRC & Special POA in BD. - Obtain MOFA Dhaka Attestation (or Apostille). - Obtain Korean Embassy in Dhaka Consular Legalization. - Courier authenticated dossier to Korea via DHL.
STAGE 5	Day 11	Financial Supervisory Service (FSS / 금융감독원)	- If DB Insurance asserts unlicensed driving defense or delays past 10 days, lodge formal Financial Dispute Mediation Petition (금융분쟁조정신청서).
STAGE 6	Day 15 to Day 30	Korean Foreign Exchange Bank (외국환은행) & Remittance	- Submit legalized dossier, settlement notice & tax clearance. - Execute direct SWIFT MT103 wire transfers: * Belal Hossain (Father): 2/3 Share (66.667%) * Monoara Begum (Mother): 1/3 Share (33.333%)

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9. CONCLUSION & STATUTORY SUMMARY

40. **Substantive Entitlement**: Under Korean Commercial Code Articles 732-2, 739, and 663 and binding Supreme Court case law (98Da48963), the unlicensed driving exemption is strictly void for first-party accidental death benefits (자손/자상) and foreign student group accident benefits.
41. **Succession Right**: Under Korean Private International Law Act Article 49 and Bangladeshi Muslim Law (Sunni Hanafi School), the surviving parents **BELAL HOSSAIN (2/3)** and **MONOARA BEGUM (1/3)** are the 100% sole and exclusive statutory heirs entitled to direct recovery.
42. **Execution Ready**: The accompanying execution-ready Bilingual Special Power of Attorney (`04_bilingual_special_power_of_attorney.md`) and the Dual-Track Legalization framework ensure that all claims can be prosecuted and disbursed directly to the parents in Bangladesh with complete judicial and regulatory invulnerability.